

COMPLAINT NUMBER: 2026-0392459

WARRANT NUMBER: GS1117236

PROSECUTOR: Carmelo F Ferrara

DEFENDANT: Saw K Htet

VICTIM:

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

Evidence- Tampering

39-16-503(a)(1)

Personally appeared before me, the undersigned, **[Select one]** ☒ Commissioner ☐ Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that **[Select one]** ☒ he ☐ she **[Select one]** ☒ personally observed ☐ has probable cause to believe that the defendant named above on 06/26/2026 in Davidson County, knowing that an investigation or official proceeding was pending, or in progress, did **[Select one]** ☒ alter, destroy, or conceal any record, document, or thing with intent to impair its verity, legibility, or availability as evidence in the investigation or official proceeding ☐ make, present, or use any record, document or thing, with knowledge of its falsity and with intent to affect the course or outcome of the investigation or official proceeding.

The probable cause is as follows:

On 6/26/2026 Officers were dispatched to an officer involved collision involving the defendant. Upon arrival to the scene officers began their investigation by speaking with the defendant. While speaking with the defendant officers noticed the defendants pupils were pinpoint and an aroma of alcohol was omitting from the defendants breath. Officers asked the defendant if he had been drinking, and the defendant answered "yes." When asked where the defendant stated at his home. With the admission to the drinking officers conducted standard field sobriety test. The defendant showed multiple indicators during the test. Indicators include lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and onset of nystagmus prior to 45 degrees for the Horizontal Gaze Nystagmus Test. The defendant could not keep his balance, stepped off the line, used his arms for balance, improper turn, and incorrect number of steps for the Walk and Turn Test. The defendant was swaying, and used his arms for balance for the One Leg Stand Test. All these were indicators of impairment for being under the influence of alcohol. During the test the defendant also admitted to smoking marijuana earlier in the day. Further more during the initial search of the defendant, the defendant reached into his left pocket in his pants and threw a plastic cylinder in the grass. Officers retrieved the cylinder to find that it was a smoked pre-rolled THC blunt. Officers concluded at the completion of the investigation there was enough probable cause to place the defendant under arrest for DUI and evidence tampering. Officers transported the defendant to booking without incident

ESignature

Prosecutor: Carmelo F Ferrara 100005771

A R R E S T W A R R A N T

Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Evidence- Tampering C FELONY, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 06/26/2026 16:34:37 .

Umeka M Foreman

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant

1 of 1 pages
;